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Seigfried, Sokola, Sturgeon, Walsh; Reps. Gorman,
S. Moore, Neal, Phillips, Romer, Ross Levin, Snyder-Hall

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 5

AN ACT PROPOSING AN AMENDMENT TO ARTICLE I OF THE DELAWARE CONSTITUTION RELATING TO
THE RIGHT TO REPRODUCTIVE FREEDOM.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members
elected to each house thereof concurring therein):

Section 1. Amend Article I of the Delaware Constitution by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 22. Right to reproductive freedom.

(a) Every individual has a fundamental right to reproductive freedom, which entails the right to make and
effectuate decisions about all matters relating to pregnancy, including prenatal care, childbirth, postpartum care,
contraception, sterilization, abortion care, miscarriage management, and infertility care.

(b) An individual's right to reproductive freedom shall not be denied, burdened, nor infringed upon.

(c) This State may regulate the provision of abortion care after fetal viability, provided that in no circumstance
shall this State prohibit an abortion that, in the professional judgment of an attending health care professional, is medically
indicated to protect the life or physical or mental health of the pregnant individual.

SYNOPSIS

This Act is the first leg of an amendment to the Delaware Constitution to ensure that every Delawarean is afforded
reproductive freedom.

Amending the Delaware Constitution requires not only the passing of the changes in this Act, but also passage of
the same changes after the next general election by the next General Assembly.

This Act requires a greater than majority vote for passage because § 1 of Article XVI of the Delaware Constitution
requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend the
Delaware Constitution.

Author: Senator Townsend